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20 Years of the Double Pukelsheim System in Switzerland: What Is the Mechanical Effect of the Transition from the Hagenbach-Bischoff Method on the Seat Distribution of Smaller Parties?

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Abstract

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Introduction

On the 18th of December 2002 the Swiss Federal Supreme Court (FSC) came to a conclusion, which disrupted the Swiss Electoral System. In BGE 129 | 185 the FSC criticized that in the elections for the Council of the City of Zurich, the thresholds for parties to win a seat, vary heavily from district to district. Through that not every voter has the same influence and therefore is the Principle of Equal Treatment (Gleichhandlungsgebot) not given anymore. Based on this criticism the court decided that the City of Zurich needs to implement corrective measures, it let the City decide which these would be. (BGE 129 I 185, E. 7.3, S. 199–200) The Government of the Canton of Zurich decided to keep the consituency structure (Regierungsrat des Kantons Zürich, 2014, pp. 3–4). Instead the canton of Zurich comissioned the german mathematician Friedrich Pukelsheim to develop a comprehensive and at the same time minimally invasive solution for the problem. Eventually Pukelsheim came up with a solution named "biproportional divisor method with standard rounding" which is today often simply called "double Pukelsheim" or "Biproportional apportionment". (Lüscher, 2024, pp. 9-10)

The main differentiation of the Pukelsheimer Proporz, is that it through the so called upper-apportionment artificially creates a single electoral district for the initial allocation of the parliamentary seats to the parties or list groups. Through this mechanism, the difference between Seat- and voteshares gets minimized and with that also the threshold for parties to enter the parliament gets lowered. (Lüscher, 2023, p. 575)

Through it's upper-apportionment mechanism and the lowered threshold, the reform is especially relevant for the representation of smaller parties. Since votes that would previously have been ineffective in small constituencies can now contribute to a seat gain at the cantonal level. Sandro Lüscher illustrates this mechanical effect with the case of Schwyz in 2016: under the old Hagenbach-Bischoff system, the Green Liberal Party would not have won a single seat, whereas under the new method they obtained three seats (Lüscher, 2025, p. 1-3).

Since the implementation through the Canton of Zurich in 2007, nine more cantons followed till date: Schaffhausen (2008), Aargau (2009), Nidwalden (2014), Zug (2014), Schwyz (2016) , Valais (2017) , Uri (2020), Graubünden (2022) in 2025 also the voters from Basel Landschaft decided to implement the Biproportional apportionment from 2027 on (Lüscher , 2024, p.17 ; Kanton Basel-Landschaft, 2025a, p.7 ; Kanton Basel-Landschaft, 2025b) While these cantons already implemented the algorithm, more cantons are currently discussing the implementation too. So is in Thurgau currently the initiative "Mehr Transparenz bei Wahlen im Thurgau" pending at the Grand Council of the Canton and special parliamentary comittee is currently examining the initiative, also in the canton of Lucerne, the iniatitive "Faire Wahlen ohne Listenflut" was submitted and the voters will be able to decide on the effectuation (Grosser Rat des Kanton Thurgaus, n.d ; Regierungsrat des Kantons Luzern, 2026, pp. 19–20). In the canton of St.Gallen in 2026 an initiative to inaugurate the algorithm was launched (Initiativkomitee «Damit jede Stimme zählt», n.d.).

The amount of cantons who have already implemented the system or are debating about doing so, shows that the decision by the FSC had an substantial impact on how Swiss Citizens elect their regional parliaments. It seems that the double-Pukelsheimer through it's wide implementation across cantons is a success story. Since the first election under double Pukelsheim

in Zurich in 2007, the system has been used in 32 cantonal parliamentary elections.[1]

Taken together, this number of elections and almost 20 years of experience provide a reason to evaluate the impact of the reform, especially on smaller parties. Has the algorithm kept its promises, and how large is the actual difference in seat allocation between the Hagenbach-Bischoff and Double Pukelsheim systems? Are there other major differences, for example in how the reform performs in smaller versus larger parliaments, and does the reform lead to a systematic increase in party-system fragmentation?

The central research gap lies in the fact that the existing literature mainly discusses the Doppelproporz in legal, normative, or system-level terms. It emphasizes improved proportionality, fewer weightless votes, and better opportunities for smaller parties, while also pointing to trade-offs such as territorial distortions and counterintuitive seat allocations (Lüscher, 2023, 2024, 2025). The closest precedents for the calculation used in this thesis are the counterfactual comparisons by Pukelsheim and Schuhmacher, Lüscher, and Leuzinger. Pukelsheim and Schuhmacher use the actual 2011 Zurich election under Doppelproporz combined with hypothetical list alliances to calculate how the same votes would have been translated into seats under the former Hagenbach-Bischoff system, showing that larger parties receive more seats at the expense of several smaller parties under the old rule (Pukelsheim & Schuhmacher, 2011, Section D, pp. 1590–1592, Table 2). Lüscher performs a similar comparison for the 2016 Schwyz election (Lüscher, 2024, p. 13, Table 3). Leuzinger compared the then most recent elections in the seven cantons that had adopted Doppelproporz by 2018 with hypothetical allocations under their former electoral systems (Leuzinger, 2018). Unlike the present study, his counterfactual assumes that the list alliances observed in the final pre-reform election would have persisted. The two studies therefore produce different results for some elections. By contrast, Lüscher's principal empirical analysis follows Swiss cantons over time and estimates how outcomes such as disproportionality and party-system fragmentation would probably have developed in the reforming cantons had they not adopted Doppelproporz (Lüscher, 2024, pp. 126–143). As discussed further in the literature review, the remaining gap is therefore the absence of a standardized application across multiple elections and cantons that measures the resulting seat gains of smaller parties without imposing assumptions about unobserved post-reform list alliances.

Against this background, this thesis examines the mechanical effect of the electoral reform on the parliamentary representation of smaller parties. More specifically, it asks and shows statistically how many seats smaller parties gain through the transition from the Hagenbach-Bischoff system to Double Pukelsheim in Swiss cantonal parliamentary elections. It further examines whether the reform performs differently in smaller and larger parliaments and whether it leads to a systematic increase in party-system fragmentation. Its contribution is therefore not the invention of the counterfactual calculation, but its systematic application

[1] The 32 elections comprise Zurich (2007, 2011, 2015, 2019, and 2023; Amt für Statistik und Daten Kanton Zürich, 2026); Schaffhausen (2008, 2012, 2016, 2020, and 2024; Kanton Schaffhausen, n.d.; Staatskanzlei Kanton Schaffhausen, 2020, 2024); Aargau (2009, 2012, 2016, 2020, and 2024; Department für Finanzen und Ressourcen des Kantons Aargau, 2009; Regierungsrat des Kantons Aargau, 2013; Statistisches Amt Kanton Aargau, n.d.); Nidwalden (2014, 2018, 2022, and 2026; Staatskanzlei Nidwalden, 2014, 2018, 2022, 2026); Zug (2014, 2018, and 2022; Kanton Zug, 2022a, 2022b, 2022c); Schwyz (2016, 2020, and 2024; Bundesgericht, 2012); Valais (2017, 2021, and 2025; Kanton Wallis, 2016, 2020, 2024; Staat Wallis, 2017); Uri (2020 and 2024; Standeskanzlei Uri, 2024a, 2024b); and Graubünden (2022 and 2026; Kanton Graubünden, 2022, 2026).

across 32 cantonal elections using a consistent definition of smaller parties and aggregated seat-gain measures.

Theory and Literature Review

Literature Review

The analytical approaches which come closest to the the method used in this thesis, are the in the Introduction named researches by Leuzinger (2018), Pukelsheim and Schuhmacher (2011, Section D , pp. 1590 –1592) aswell as the Doctoral Thesis from Lüscher (2024). Pukelsheim and Schuhmacher use the observed 2011 Zurich election under Doppelproporz to calculate how the same votes would have been translated into seats under the former Hagenbach-Bischoff system; their comparison shows seats moving from several smaller parties to larger parties under the old rule. In their calculations, Pukelsheim and Schuhmacher make two things differently, than this thesis does. Firstly they assume that there is under Doppelproporz no 5% threshold within the electoral districts, secondly do they form hypothetical list alliances based on their political likeliness and former list alliances. This thesis though implements the 5% threshold for the canton of Zurich and all other known specifications of cantons, but it doesn't carry forward or hypothetically creates new list alliances, because whether parties would have renewed them is unkown. Leuzinger provides the closest multicanton precedent. He compares the most recent Doppelproporz election in each of seven cantons with a counterfactual allocation under the former electoral system and finds that, on average, approximately 10% of the seats would have been assigned to a different party. His counterfactual differs from the one used here in an important respect. For Zurich, Schaffhausen, and Aargau, where the former Hagenbach-Bischoff system allowed list alliances, Leuzinger assumes that parties would have repeated the alliances formed in the last pre-reform election. (Leuzinger, 2018, pp. 41-42)

To sum up, this study does not follow Leuzinger's or Pukelsheims and Schuhmachers approach of carrying historical list alliances forward into the counterfactual allocation. List alliances are in this thesis seen as strategic and election specific rather than fixed institutional parameters. Their formation depends on the parties contesting an election, their relative electoral strength, ideological proximity, district- level incentives, and expectations about possible seat gains. In Zurich, for example, the last Kantonsrat election under Hagenbach–Bischoff took place in 2003. Assuming that the alliances formed in 2003 would still have applied in 2023 despite two decades of changes in the party system would therefore introduce a strong and unverifiable behavioural assumption. For example did parties who have formed list-alliances in the canton of Zurich in 2003 not exist or run for office anymore in 2023, other parties which ran in 2023 on the other hand like the Green Liberal Party (GLP) did not exist yet in 2003 (Statistisches Amt des Kantons Zürich 2003, table 3; Statistisches Amt des Kantons Zürich 2026; Grünliberale Partei Kanton Zürich n.d.). The analysis instead includes alliances only when they were actually registered in the election under examination. This provides a transparent counterfactual that holds the observed electoral configuration constant and isolates the mechanical consequences of applying Hagenbach–Bischoff.List alliances combine the votes of connected lists during the first allocation stage and can therefore change which party receives a remainder seat.

Lüscher similarly compares the actual allocation in the 2016 Schwyz election with a simplified Hagenbach-Bischoff counterfactual, finding that the dominant SVP and CVP benefit under

Hagenbach-Bischoff, whereas the left-wing alliance and particularly the GLP benefit from Doppelproporz in that single election (Lüscher, 2024 , p.13).

The choice regarding the list alliances does not imply that parties would have contested the election without alliances under Hagenbach–Bischoff. Rather, their counterfactual alliance decisions cannot be reliably observed or reconstructed. Because alliances can mitigate the disadvantages experienced by smaller parties under Hagenbach–Bischoff, excluding unobserved alliances may affect the estimated magnitude of the resulting seat changes.

Hypotheses

To be able to answer the research question: 20 Years of Double Pukelsheim in Switzerland: What Is the Mechanical Effect of the Transition from Hagenbach-Bischoff on the Seat Allocation of Smaller Parties and Party-System Fragmentation?

We need to formulate hypotheses. The hypotheses are based on the theoretical considerations and the literature review. The first hypothesis focuses on the mechanical effect of the electoral reform on smaller parties, while the second hypothesis addresses the potential impact of the reform on party-system fragmentation.

Hypothesis 1

For each election e, smaller parties are those with less than 10% of the canton-wide vote. Let S_e^{DP} and S_e^{HB} be their combined seats under Double Pukelsheim and the counterfactual Hagenbach-Bischoff allocation, respectively, and let M_e be the total number of seats in that election. Their gain in seat share, shown for each election in Figure 2, is

$$\Delta_e = 100\frac{S_e^{DP} - S_e^{HB}}{M_e} \quad \text{percentage points} .$$

The main hypothesis concerns the unweighted mean of these election-level gains, $\bar{\Delta} = E^{-1}\sum_{e=1}^{E}\Delta_e$, across the E analyzed elections. Thus, "more than 5% more seats" means a mean gain greater than **five percentage points of all available seats**, rather than a 5% increase relative to the Hagenbach-Bischoff seat total.

H_0 (null hypothesis): The mean gain in smaller parties' seat share under Double Pukelsheim is at most five percentage points: $\bar{\Delta} \leq 5$.

H_1 (main hypothesis): The mean gain in smaller parties' seat share under Double Pukelsheim exceeds five percentage points: $\bar{\Delta} > 5$.

The 10% threshold is based on that the Swiss Federal Supreme Court has argued that direct and natural quorums, understood as barriers to representation within an electoral district, should generally not exceed 10% (ADD SOURCE HERE)

Hypothesis 2

H_02 (null hypothesis): The transition to the double Pukelsheim system did not lead to a systematic increase in party-system fragmentation.

$$H_{0,2}: \quad \mathrm{ENP}_{\mathrm{post}} - \mathrm{ENP}_{\mathrm{pre}} \leq 0$$

H_12: The transition to the double Pukelsheim system led to a systematic increase in party-system fragmentation.

$$H_{1,2}: \quad \mathrm{ENP}_{\mathrm{post}} - \mathrm{ENP}_{\mathrm{pre}} > 0$$

(add source here)

$$\mathrm{ENP}_v = \frac{1}{\sum_{i=1}^{n} v_i^2} \qquad \mathrm{ENP}_s = \frac{1}{\sum_{i=1}^{n} s_i^2}$$

v = votes shares, s = seat shares

Analysis

H1: The analysis takes the actual seat allocation under the Pukelsheimer Proporz as its starting point. Based on the available election data at the municipal or district level, it then reconstructs how many seats each party would have obtained under the former Hagenbach-Bischoff system. The comparison between the actual seat distribution under the new system and the hypothetical distribution under the old system makes it possible to identify how many seats each party gained or lost as a result of the reform. In this way, the study assesses the mechanical effect of the electoral-system change on party representation, with a particular focus on smaller parties.

(add source here) For the purposes of this thesis, a smaller party is defined as an electoral list or list group with less than 10% of the canton-wide vote share in the relevant election. Youth lists and other special-interest lists, such as women's lists or pensioners' lists, are treated as separate analytical units whenever they are reported separately in the official election results; their votes and seats are not attributed to a mother party. Accordingly, the term *party* in the analysis refers to the standardized electoral list or list group recorded in the dataset and does not necessarily correspond to a broader organizational party family. The choice of 10% as the threshold is grounded in both legal and normative considerations. In its decision BGE 131 I 74, the Swiss Federal Supreme Court argued that direct and natural quorums, understood as barriers to representation within an electoral district, should generally not exceed 10%. The 2013 report of the Federal Chancellery refers to the same benchmark and further notes that the Venice Commission considers thresholds in the range of 10–15% to be the upper acceptable limit . Using vote share rather than absolute party size is particularly appropriate because a party may be electorally small in one region while being comparatively strong in another. Low thresholds are closely linked to the principle of Erfolgswertgleichheit, or equality of vote success value, which requires that votes should be translated into seats as equally and effectively as possible. Investigating the threshold is especially important, since none of the reform cantons had a <10% threshold in all districts before the implantation of the new electoral reform (Lüscher, 2024, p. 115).

Data Cleaning

To be able to analyze the data from the different elections and compare the outcomes. each dataset has to be cleaned. The data For some cantons e.g. Valais and Schwyz the data is very scattered, therefore for there multiple datasets per election have to be cleaned and merged.

The procedure for the data cleaning was the following: For each canton in alphabetically order, for each election the data was cleaned.

To ensure the compatibility of the different datasets, the column names were standardized. The column names were renamed for each dataset to the following: "total_votes", "svp_votes",

“sp_votes”, “cvp_votes”, “fdp_votes”, “glp_votes”, “bdp_votes”, “green_votes”, “other_votes”. It might be that some of the datasets do not contain all of these columns, since the party landscapes varies geographically and over time.

For the counterfactual, the observed district-level party votes and district seat magnitudes are retained. The Hagenbach-Bischoff allocation follows the relevant cantonal allocation rule (e.g., Sections 12–13 of the former Aargau Grossratswahlgesetz). The main counterfactual treats every party independently and does not carry historical list alliances forward. This is a deliberate identification choice: because inter-party list alliances were abolished with the transition to Double Pukelsheim, the alliances that parties would have formed in subsequent elections are unobserved. Leuzinger (2018, p. 42), by contrast, assumes that the alliances from the last pre-reform election would have persisted. Vote shares use each canton’s *Wählerzahl* definition: district-level party votes are divided by the district seat magnitude and rounded to the nearest integer before cantonal aggregation.

The official Double Pukelsheim results (`seats_dp`) are sourced from official cantonal authorities and are documented in the Bibliography. A single lookup table consolidates all official results for easy merging with the Hagenbach-Bischoff counterfactuals. All data processing is implemented in canton-specific R scripts (R/canton_*.R) which apply shared functions for algorithm execution and validation.

Results

Smaller-party representation across elections

Figure 1 compares the observed Double Pukelsheim allocation with the counterfactual Hagenbach-Bischoff allocation for every cleaned election. For each election, the figure aggregates the seats and canton-wide vote shares of all parties below the 10% threshold defined above. The grey line connects the two allocations derived from the same election.

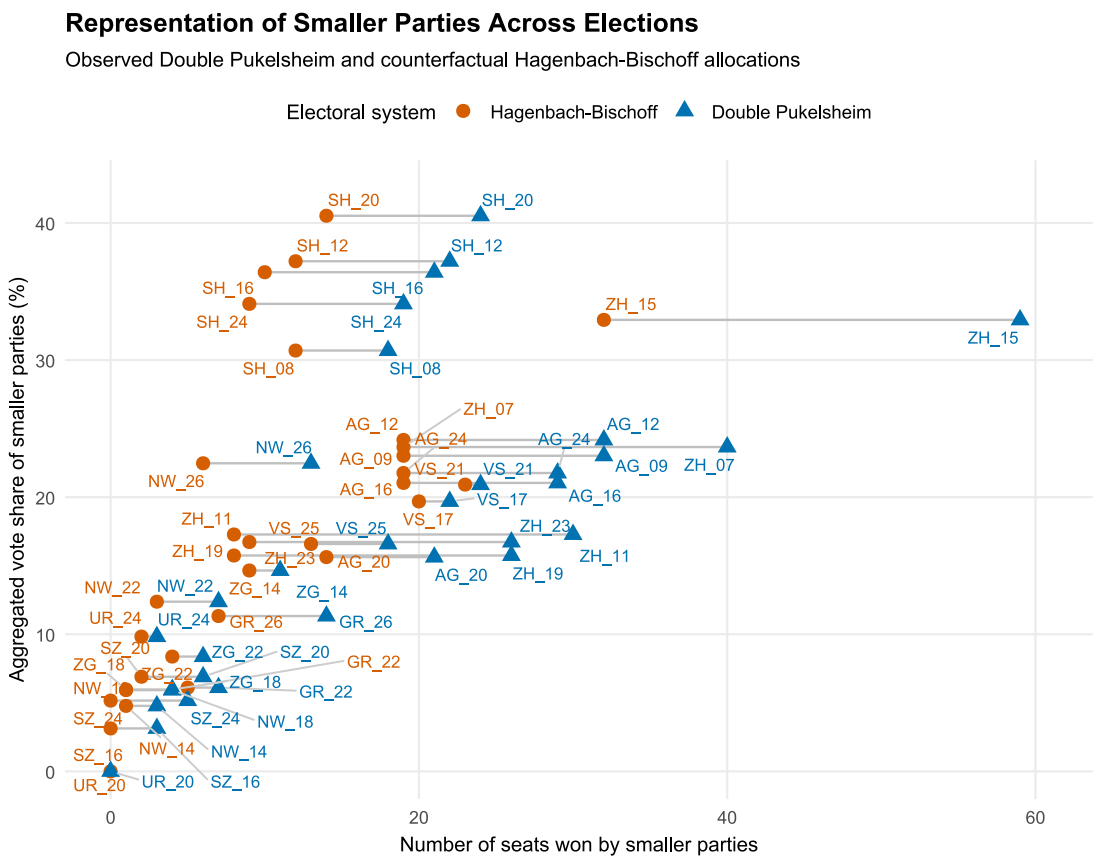


Figure 1: Seats won by smaller parties under Double Pukelsheim and the counterfactual Hagenbach-Bischoff allocation. Smaller parties are those with less than 10% of the canton-wide vote share.

Relative smaller-party representation across elections

Figure 2 shows the same elections using the percentage of all parliamentary seats won by smaller parties on the x-axis. Each label reports the gain under Double Pukelsheim as a percentage-point share of all available seats.

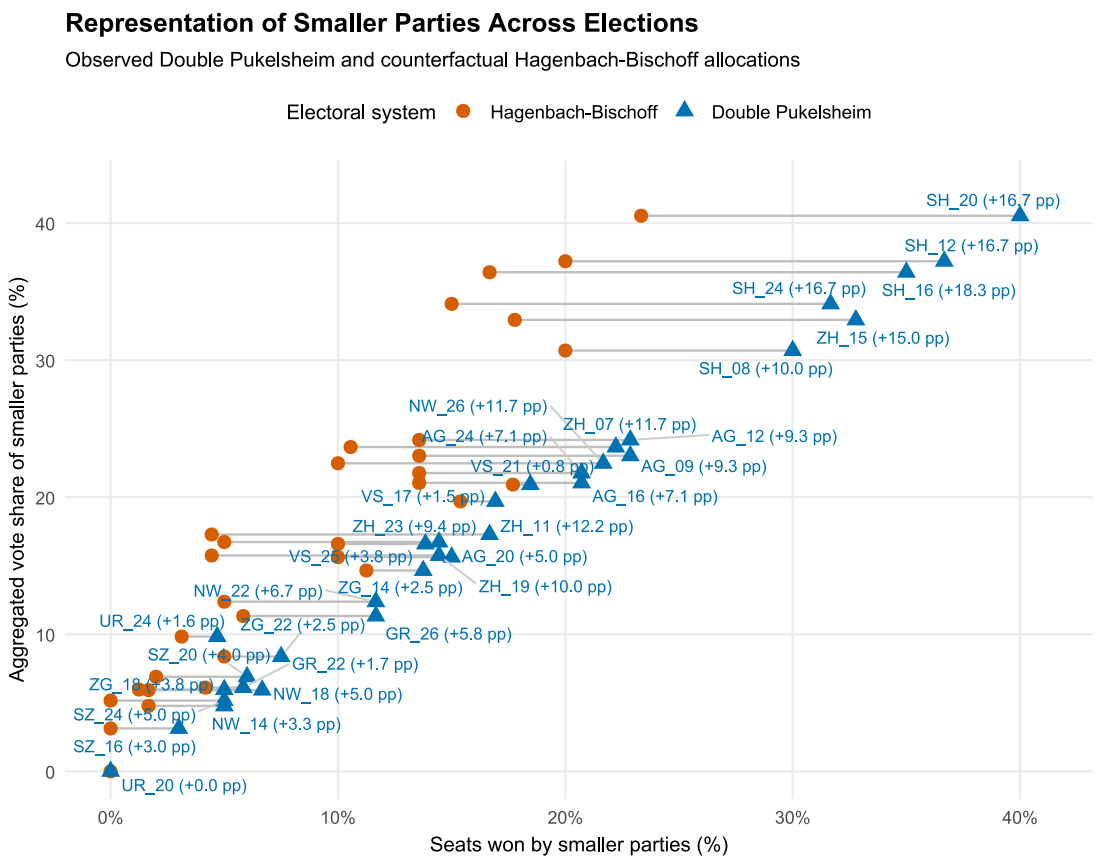


Figure 2: Percentage of seats won by smaller parties under Double Pukelsheim and counterfactual Hagenbach-Bischoff.

> **i** Hypothesis 1 summary
>
> Across all 32 elections, the unweighted mean gain in smaller parties' share of all seats was 7.4 percentage points (Q1: 3.2; median: 6.2; Q3: 10.4). The mean weighted by each election's parliament size was 7.5 percentage points. 17 individual elections exceeded five percentage points.

Interpretation of the Results

Discussion

Conclusion

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Appendix

Appendix 1: Explanation Data Cleaning Process

Appendix 2: Code for Data Cleaning

Declaration of AI-Assistance